

should prevail if he could prove "not only that he believed, in good faith, that his conduct was lawful, but also that his belief was reasonable." *Ibid.* Thus, an affirmative defense of reasonable good faith was available *at trial*.⁴ In contrast, an immunity claim of the *Harlow* type⁵ that would foreclose any trial at all was not available and, in my view, was not appropriate. The strength of the reasonable good-faith defense in any specific case would, of course, vary with the trial evidence about the facts upon which the officer had relied when he made the challenged search or arrest.⁶

As the Court of Appeals recognized, assuring police officers the discretion to act in illegal ways would not be advan-

⁴ Cf. *Gomez v. Toledo*, 446 U. S. 635, 640 (1980) (defendant has the burden of pleading good faith as an affirmative defense).

⁵ "Reliance on the objective reasonableness of an official's conduct, as measured by reference to clearly established law, should avoid excessive disruption of government and permit the resolution of many insubstantial claims on summary judgment. On summary judgment, the judge appropriately may determine, not only the currently applicable law, but whether that law was clearly established at the time an action occurred. If the law at that time was not clearly established, an official could not reasonably be expected to anticipate subsequent legal developments, nor could he fairly be said to 'know' that the law forbade conduct not previously identified as unlawful. Until this threshold immunity question is resolved, discovery should not be allowed. If the law was clearly established, the immunity defense ordinarily should fail, since a reasonably competent public official should know the law governing his conduct." *Harlow*, 457 U. S., at 818-819 (footnotes omitted).

⁶ The Court of Appeals in *Bivens* justified the defense on the basis of the need to protect the officer from the hazards associated with trying to predict whether a court would agree with his assessment that a particular set of facts constituted probable cause. The court explained:

"The numerous dissents, concurrences and reversals, especially in the last decade, indicate that even learned and experienced jurists have had difficulty in defining the rules that govern a determination of probable cause, with or without a warrant. As he tries to find his way in this thicket, the police officer must not be held to act at his peril." *Bivens v. Six Unknown Named Agents of Federal Bureau of Narcotics*, 456 F. 2d 1339, 1348 (CA2 1972) (citations omitted).